

P23

THE STATE OF TEXAS
VS.
DESTINIE HILLSMAN
8627 HUFSMITH ROAD APT: 824
TOMBALL TX 77375

SPN: 0816 2742
DOB: B F 11/02/1997
DATE PREPARED: 10/06/2022

D.A. LOG NUMBER: 2880139
CJIS TRACKING NO.:
AGENCY: HIS
O/R NO: 2208290027
ARREST DATE: TO BE

NCIC CODE: 1199 01

RELATED CASES:

FELONY CHARGE: Improper Relationship with Student

CAUSE NO: 17798301
HARRIS COUNTY DISTRICT COURT NO: 351
FIRST SETTING DATE:

COURT ORDERED BAIL: TO BE SET AT
MAGISTRATION
PRIOR CAUSE NO:
CHARGE SEQ NUM: 1

IN THE NAME AND BY AUTHORITY OF THE STATE OF TEXAS:

Before me, the undersigned Assistant District Attorney of Harris County, Texas, this day appeared the undersigned affiant, who under oath says that he has good reason to believe and does believe that in Harris County, Texas, **DESTINIE HILLSMAN**, hereafter styled the Defendant, heretofore on or about **May 1, 2022**, did then and there unlawfully, while an employee of a public secondary school, and with the intent to arouse and gratify the sexual desire of the Defendant, intentionally communicate in a sexually explicit manner with J.C, a person who was enrolled in the school in which the Defendant worked, by text message.

Probable Cause

Affiant, A. Vaughn, is employed as a Peace Officer with the Houston ISD Police Department (HISD PD), assigned to the Criminal Investigations Division. Affiant has reason to believe and does believe that Destinie Hillsman, with the date of birth of November 2, 1997 and TX DL 39197598, hereafter styled as the Defendant, committed the felony offense of Improper Relationship Between Educator and Student, while employed with the Houston Independent School District at Holland Middle School located at 1600 Gellhorn Drive Houston, Texas 77029. The offense occurred at Holland Middle School on or about May 1, 2022.

Affiant based her beliefs on the following facts:

On Friday, August 26, 2022, while investigating another case involving the same defendant, Affiant was advised that the Defendant shared a kiss with and acted inappropriately with a previous student who currently attends Furr High School.

On Monday, August 29, 2022, Affiant arrived at Furr High School to speak with a 14 yrs. old female student, identified by her initials J.C. and hereafter styled as the Complainant, who she finds to be credible and reliable. The Complainant told the Affiant that an ex-girlfriend introduced her to the Defendant, who she was able to identify by name and sight as Destinie Hillsman. The Defendant told the Complainant she wanted to get to know her for herself, so they exchanged telephone numbers. The Defendant told that Complainant that she believed the Complainant was her soulmate and she wanted her to refer to her as "baby", but the Complainant stated she did not like that. During this interview, the Complainant showed the Affiant screenshots and images between the Complaint and the Defendant. Affiant observed that the Defendant sent the Complainant text messages stating:

"Lol yea you may not be shy but I swear I felt your mf heart beat when I let my seat back and literally all I was gone do was get on top of you."

She also sent a text stating:

"J.C. I want you and I wanna see what all you know because if I was your age girl!"

"I really wanna see how sexual you can get but I don't even know if you know."

"your a good kisser, your kisses are passionate and honestly you don't get that a lot."

The Complainant told the Affiant that she and the Defendant kissed in the mouth, and that the Defendant would pick up the Complainant from her home to take her to summer school and she went to the Defendant's home briefly during summer 2022.

Affiant spoke with the Complainant's mother, who agreed to allow the Complainant to participate in a forensic interview and who gave Affiant the Complainant's phone and signed a Consent to Search Form the device. Affiant delivered the phone to the Harris County District

Attorney's Office Digital Forensic investigator and Texas Peace Officer, Zach Caldwell Affiant knows that Zach Caldwell has been trained and educated to perform digital forensic investigations into cell phones and other devices

Affiant reviewed a forensic interview that occurred with the Complainant on Thursday, September 15, 2022, that was conducted at the Children's Assessment Center located at 2500 Bolsover Houston, Harris County, Texas During the forensic interview, the Complainant stated that she knows the Defendant by name and sight as Destinie Hillsman, who was a teacher at Holland Middle School The Complainant stated that she and the Defendant would talk on iMessage and TikTok The Complainant stated that while she was in the Defendant's classroom watching movies, sitting behind her desk, the Defendant tried to touch her private part, which she describes as her vagina The Complainant stated that she and the Defendant kissed in the Defendant's classroom and ca The Complainant stated the Defendant would talk to her in a sexual manner, saying she wanted to do things with her Affiant reviewed the digital forensic examination which disclosed videos, images, and text messages between the Complainant and the Defendant Numerous messages were recovered on the device between the Complainant and the Defendant, all indicating a dating relationship and not one between an educator and a student One of those messages from TikTok is below

"Okay shit and I understand that so understand that you not gone be the only one I fw (fuck with) because you not the only one you fw (fuck with) I can't give you my all and I'm only getting a dam piece of you", "nah I want you to chase me, because you want to, not because I want you to"

Affiant and HISD PD Sergeant Qumtamil spoke with the Defendant and obtained a voluntary video/ audio statement on Friday, September 16, 2022 The Defendant stated that she grew a bond with the Complainant and that she shouldn't have gotten involved with her Defendant admitted that she kissed the Complainant but denied that she ever touched the Complainant The Defendant stated that she is not the only one to blame for the relationship, and stated that the Complainant and her both made a mistake

AGAINST THE PEACE AND DIGNITY OF THE STATE

Signed and sworn by me on 10/6/2022

Audra Vaughn
AFFIANT

Duly attested by me on 10/6/22

[Signature]
Assistant District Attorney
Harris County District Attorney's Office
TBC No 2408936

Witness (Peace Officer)

Amber Hastings #96686
Witness Printed name & Badge or Payroll number

COMPLAINT

FILED
Marilyn Burgess
District Clerk

OCT 06 2022
Time 15:39
By [Signature]
Deputy

COPY OF COMPLAINT/WARRANT DELIVERED TO
Officer's name: Vaughn, Anaya
Police agency: Houston ISD PD
Phone no: 281 741 0681 Date: 10/16/22 4 20pm

Unofficial Copy Office of Marilyn Burgess District Clerk